

Court No. - 5

Case :- WRIT - C No. - 14109 of 2020

Petitioner :- Dinesh Kumar Shivhare

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties.

Grievance of the petitioner is that there was some electricity dues against the petitioner, and he deposited certain amount from time to time, but without adjusting the deposited amount, recovery certificate of Rs. 06,32,165.00/- has been issued against the petitioner.

Sri Krishna Agrawal, learned counsel for the respondent nos. 2 and 3 states that the petitioner may submit an application before the respondent no.3 in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005, which shall be considered by the respondent no.3 and appropriate order shall be passed.

In view of aforesaid, writ petition is **disposed of** with liberty to the petitioner to raise all the grievances with regard to the deposited dues before the respondent no.3 in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005, within three weeks from today along with certified copy of this order and in the event such an application is filed within the stipulated period, same shall be decided by the respondent no.3 in accordance with law, expeditiously, preferably within next four weeks.

Order Date :- 21.9.2020

T.S.